

Court No. - 3

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari
Bhawan Pandey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Shri B.C. Rai, learned counsel for the petitioner submits that despite earlier directions of this Court in Writ Petition No. 33912 of 2013 (M/S Prem Steels (Pvt.) Limited Vs. State of U.P. and 2 others, the respondent no. 2 has again repeated the same order which is impugned in this writ petition. It is further stated that despite clear directions even cross-examination as requested by the petitioner, has not been afforded and the copies of relied upon documents has not been provided to the petitioner. He further submits that there was not only breach of principles of natural justice but also breach of directions of order dated 20.6.2013 passed by the Division Bench in Writ Petition No. 33912 of 2013, against which, even the SLP filed by the respondent was dismissed.

Shri Hari Bhawan Pandey, learned counsel for the respondents prays for and is granted a week's time to file counter affidavit.

Petitioner shall have, thereafter, three days' time to file rejoinder affidavit.

Put up as a fresh case at 10:00 AM on 26.7.2022 before the appropriate Bench.

When the case is next listed, the name of Shri Hari Bhawan Pandey shall be shown as counsel for the respondents.

Order Date :- 12.7.2022

A. V. Singh

Court No. - 3

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari Bhawan Pandey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Chandra Kumar Rai, J.

As prayed by learned counsel for the respondents, three days and no more time to file counter affidavit. Petitioner shall have a week thereafter to file rejoinder affidavit.

List/put up in the additional cause list on 5th August, 2022 at 2:00 P.M.

Order Date :- 26.7.2022

Rameez

Court No. - 3

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari
Bhawan Pandey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

As jointly prayed by learned counsels for the parties, list/put up
in the additional cause list before the appropriate Bench **on**
22.08.2022 at 2:00 p.m.

Order Date :- 5.8.2022

SK

Court No. - 39

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari
Bhawan Pandey

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Jyotsna Sharma, J.

Learned counsel for the petitioner prays for and is granted ten days' time to file supplementary affidavit to bring on record the applications moved by petitioner seeking cross examination of the officer concerned after decision of this Court.

List on 06.09.2022 in the additional cause list.

Order Date :- 22.8.2022

Asha

Court No. - 21

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari
Bhawan Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Passed over on the illness slip of Sri Hari Bhawan Pandey,
learned counsel for the respondent.

List on 15th February, 2023.

Order Date :- 1.2.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari
Bhawan Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Supplementary affidavit filed today is taken on record.

Learned counsel for the respondent prays for and is granted two weeks' time to file supplementary counter affidavit.

List on 15.03.2023.

Order Date :- 15.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari Bhawan Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Shri B.C. Rai, learned counsel for the petitioner states that he would not be relying upon the supplementary affidavit.

Learned counsel for the Electricity Department prays for and is granted one week's time to prepare the case.

List on 28th March, 2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari Bhawan Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The appeal filed by the petitioner under Section 127 of the Electricity Act, 2003 challenging the order of final assessment dated 03.08.2011 was allowed by the appellate authority by order dated 09.04.2013. The matter was remitted back to the assessing authority for deciding it afresh after permitting the parties to lead evidence and giving them opportunity of hearing. The appellate court also permitted cross-examination of the officers of the Electricity Department by the petitioner.

Since the said direction was not being complied with by the assessing authority, therefore, the petitioner filed Writ C No. 33912 of 2013 and the said writ petition alongwith other similar matters was decided by a common order dated 20.06.2013 reiterating the directions issued by the appellate authority. The special leave petition filed by the Discom challenging the order dated 20.06.2013 was dismissed leaving the question of law open for consideration in appropriate matter. The Executive Engineer, the assessing authority thereafter passed an order dated 15.12.2021 reiterating the final assessment order dated 03.08.2011 which already stood set aside by the appellate authority by order dated 09.04.2013. The assessing authority did not hear the petitioner nor

provided opportunity to cross-examine the witnesses. The stand taken in the counter affidavit is that no opportunity of hearing was required to be given to the petitioner as it had already been heard by officer who passed the previous order (paragraphs No. 18 and 22 of the counter affidavit).

It is urged that the procedure followed by the assessing authority while passing the impugned order is in teeth of the directions issued by the writ court as well as the appellate court.

The contention appears to have force.

Sri Narendra Singh, Executive Engineer who had passed the impugned order shall file his personal affidavit and show cause why this Court should not refer the matter to higher officials for appropriate action being taken against him for not following the repeated directions issued by different authorities on the judicial/quasi judicial side.

List on 02.05.2023.

Sri Hari Bhawan Pandey, learned counsel appearing for the respondent Electricity Department shall communicate the instant order to the Managing Director of the concerned Discom so that it is communicated to Sri Narendra Singh, Executive Engineer at the place of his current posting.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.4.2023
Jaswant

Court No. - 21

Case :- WRIT - C No. - 11562 of 2022

Petitioner :- Prem Steels Pvt. Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Hari Bhawan Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition is directed against the order dated 15.12.2021 passed by respondent no.2 in exercise of powers under Section 126 of the Electricity Act, 2003.

The background facts in which the aforesaid order was passed is noted in our previous order dated 17.04.2023. It is as follows:-

"The appeal filed by the petitioner under Section 127 of the Electricity Act, 2003 challenging the order of final assessment dated 03.08.2011 was allowed by the appellate authority by order dated 09.04.2013. The matter was remitted back to the assessing authority for deciding it afresh after permitting the parties to lead evidence and giving them opportunity of hearing. The appellate court also permitted cross-examination of the officers of the Electricity Department by the petitioner.

Since the said direction was not being complied with by the assessing authority, therefore, the petitioner filed Writ C No. 33912 of 2013 and the said writ petition alongwith other similar matters was decided by a common order dated 20.06.2013 reiterating the directions issued by the appellate authority. The special leave petition filed by the Discom challenging the order dated 20.06.2013 was dismissed leaving the question of law open for consideration in appropriate matter. The Executive Engineer, the assessing authority thereafter passed an order dated 15.12.2021 reiterating the final assessment order dated 03.08.2011 which already stood set aside by the appellate authority by order dated 09.04.2013. The assessing authority did not hear the petitioner nor provided opportunity to cross-examine the witnesses. The stand taken in the counter affidavit is that no opportunity of hearing was required to be given to the petitioner as it had already been heard by officer who passed the previous order (paragraphs No. 18 and 22 of the counter affidavit).

It is urged that the procedure followed by the assessing authority while passing the impugned order is in teeth of the directions issued by the writ court as well as the appellate court.

The contention appears to have force.

Sri Narendra Singh, Executive Engineer who had passed the impugned order shall file his personal affidavit and show cause why this Court should not refer the matter to higher officials for appropriate action being taken against him for not following the repeated directions issued by different authorities on the judicial/quasi judicial side.

List on 02.05.2023.

Sri Hari Bhawan Pandey, learned counsel appearing for the respondent Electricity Department shall communicate the instant order to the Managing Director of the concerned Discom so that it is communicated to Sri Narendra Singh, Executive Engineer at the place of his current posting."

In compliance of the aforesaid order, the concerned Executive Engineer has filed his personal affidavit and in para 7, he has stated as follows:-

"7. That the deponent has never intended to disobey the order of the Hon'ble Court, there may be some procedural mistake while passing the final assessment order that was only due to human error not intentional and also lack of sufficient time, for which the deponent tenders his unconditional apology before this Hon'ble Court."

Sri Hari Bhawan Pandey, learned counsel appearing on behalf of electricity department concedes that the impugned order is not in consonance with the directions issued by this Court and the appellate authority and submits that liberty be granted to the respondents to pass a fresh order.

Having regard to the aforesaid stand of the respondents, we hereby quash the impugned assessment order dated 15.12.2021. The Assessing Officer shall now pass fresh order strictly in consonance with the direction issued by the appellate authority in its order dated 9.04.2023 and after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

In the result, the writ petition succeeds and is allowed to the extent indicated above.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

SL